

judicial decisionmaking from intimidation and outside interference.<sup>6</sup> Gradually, the protection of judicial independence became its primary objective. The specific source of intimidation articulated by the English common-law cases was the threat of vexatious litigation should judges be required to defend their judicial acts in collateral civil proceedings. In *Taaffe v. Downes*, *supra*, at 18, n. (a), the justices observed: "If you once break down the barrier . . . and subject [judges] to an action, you let in upon the judicial authority a wide, wasting, and harassing persecution . . ." The common-law cases made no reference to the effect on judicial independence of particular remedies such as an award of damages.

The early opinions of this Court echo the principal justification for the immunity doctrine articulated at English common law. In *Bradley v. Fisher*, *supra*, the emphasis was on the

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courts. R. Pound, Appellate Procedure in Civil Cases 25-26 (1941). To ensure this procedure, it was necessary to immunize the judicial acts of common-law judges from collateral attack—hence the doctrine of judicial immunity.

<sup>6</sup> Because the judge rather than the prevailing party to the original suit became the named defendant in a complaint for false imprisonment, it was the judge who suffered the burdens of litigation and the consequences of any adverse judgment. The burdens of litigation could be substantial. In the early days, the defendant judge was required, at his own expense, to prepare a record setting forth the proceedings upon which his challenged judicial decisions were made and to send four suitors of the court to bring the record before the King's Bench. *Id.*, at 26. If the judgment was found to be false, the judge was amerced or fined. 6 Holdsworth, at 235. The common law recognized that the threat of personal litigation would jeopardize the independence of judicial decisionmaking: judges, to avoid being called before a hostile tribunal to account for their judicial acts, could be deterred by personal considerations from judging dispassionately the merits of the cases before them. See *Taaffe v. Downes*, 13 Eng. Rep., at 23, n. (a) ("A Judge . . . ought to be uninfluenced by any personal consideration whatsoever operating upon his mind, when he is hearing a discussion concerning the rights of contending parties; otherwise, instead of hearing them abstractedly, a considerable portion of his attention must be devolved to himself").